



No FEAR Act

Overview

The Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002, generally known as the No FEAR Act, was passed by Congress as [Public Law 107-174](#), and appears under [5 USC 2301](#). It was passed in response to a number of high-profile discrimination and whistleblower complaints. The No FEAR Act expands on agency obligations under the Whistleblower Protection Act, [5 USC 2302](#) (b)(8), and under these antidiscrimination laws:

- [5 USC 2302](#) (b)(1) and (9). Prohibited personnel practices -- discrimination and retaliation.
- [29 USC 206](#) (d). Equal Pay Act.
- [29 USC 631](#). Age Discrimination in Employment Act.
- [29 USC Section 633a](#). ADEA.
- [29 USC 791](#). Rehabilitation Act.
- [42 USC Section 2000e-16](#). Title VII, Civil Rights Act.

Specifically, it requires agencies to reimburse the Judgment Fund for any discrimination or whistleblower judgment, award, or settlement out of their own budgets, to provide notification to employees and training for them on their rights under antidiscrimination and whistleblower laws, and to post data on EEO complaints on agency websites. Regulations on reimbursement of the Judgment Fund can be found at [5 CFR Part 724, Subpart A](#); on notification and training at [5 CFR Part 724, Subpart B](#); and on posting EEO data on agency websites at [29 CFR Part 1614, Subpart G](#).

The No FEAR Act was amended by the Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020, contained in Sec. 1131-1138 of the National Defense Authorization Act of 2021, H.R. 6395. The act increases agency accountability by adding requirements to publicly post findings of discrimination (including retaliation) by an agency, the EEOC, and the courts and to report to the EEOC whether disciplinary action has been proposed against an employee as a result of the violation. Agencies are also now required to establish a system to track discrimination complaints arising under [5 USC 2302](#) (b)(1) and adjudicated through the EEO process. In addition, if an agency takes an adverse action under [5 USC 7512](#) against an employee for a discriminatory act, it must include a notation of the adverse action and the reason for the action in the employee's personnel record.

This Quick Start Guide covers the following Key Points:

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Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cit source. The references to **Hadley** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive V rights.

General principles

- **Hadley:** The EEOC does not have the authority to order disciplinary action against a discriminating official as part of its remedy, *see, e.g., Mitchell v. Department of the Army*, [102 LRP 22682](#), EEOC No. 07A10065 (EEOC OFO 2002), though there have been several legislative proposals to give the commission that authority. The No Fear Act did not provide the EEOC with any authority to impose disciplinary relief. *Hadley Guide to Federal Sector Equal Employment Law and Practice: Disciplinary and Corrective Action*, citing *Jambora v. U.S. Postal Service*, [106 LRP 31203](#), EEOC No. 07A4012 (EEOC 2006).
- **Hadley:** The commission does require that an agency take action to prevent a recurrence of discrimination and that action can include discipline. *Hadley Guide to Federal Sector Equal Employment Law and Practice: Disciplinary and Corrective Action*, citing [29 CFR 1614.501](#) (a)(2).

Reimbursement of the Judgment Fund

- Agencies must reimburse the Judgment Fund for payments covered by the No FEAR Act. Reimbursement must be made within a reasonable time as described in [5 CFR 724.104](#), [5 CFR 724.103](#).

- This obligation refers to all payments from the Judgment Fund after Oct. 1, 2003, the effective date of the No FEAR Act. When individual actions result in multiple payments, the obligation exists if the initial payment in the action was made after Oct. 1, 2003, even if the action was initiated before that date. [5 CFR 724.102.](#)
- The procedures for reimbursement are those of the Bureau of the Fiscal Service, Department of the Treasury (formerly Financial Management Service, the operations of which were consolidated with the Bureau of the Public Debt to form the BFS). The BFS will notify agency's chief financial officer of payments to be reimbursed, within 15 business days of the disbursement from the Judgment Fund. All reimbursements under the No FEAR Act are expected to be fully collectible from the agency. The agency must complete the reimbursement or make arrangements in writing for reimbursement within 45 business days of receiving the BFS notice. [5 CFR 724.104.](#)
- An agency's failure to reimburse the Judgment Fund or contact BFS within 45 business days after receipt of an BFS notice for reimbursement under [5 CFR 724.104](#) will be recorded on an annual basis and posted on the BFS [website](#). After an agency meets the requirements of Section 724.104, the recording will be eliminated no later than the next annual posting process. [5 CFR 724.105.](#)
- Section 102 of the [No FEAR Act](#) prohibits agencies from subjecting federal employees to any disadvantages in compensation or benefits because of the act, and therefore allows for extension of payments over several years in order to avoid reductions-in-force, furloughs, any other reductions in compensation or benefits, or adverse effects on the agency's mission.

Notification and training

- Agencies are required to provide an annual "No FEAR Act Notice" to all employees and former employees. Each agency must provide the notice to its employees in paper (e.g., letter, poster, or brochure) and/or electronic form (e.g., email, internal agency electronic site, or Internet website). Each agency must publish the *initial* notice in the *Federal Register*. Agencies with Internet websites must also post the notice on those websites, in compliance with Section 508 of the Rehabilitation Act of 1973, as amended. Posted materials are to remain until revised or replaced. [5 CFR 724.202.](#)
- Notification must be given to new employees within 90 calendar days of entering on duty. All notices must include the model text provided the regulation, although agencies may incorporate additional information within the model paragraphs, as appropriate. [5 CFR 724.202.](#) For an example, see the OPM [No FEAR Act Notice](#).
- Each agency is required to develop a written plan to train all employees, including supervisors and managers, in their rights and obligation under anti-discrimination and whistleblower protection laws. Plans must include training materials, method, schedule and documentation. Agencies may contact the EEOC and the Office of Special Counsel for assistance, but neither is authorized to review or approve training plans. [5 CFR 724.203](#) (a)-(c).
- All employees must be trained in a training cycle no longer than two years. [5 CFR 724.203](#) (d).
- All new employees must be provided this training as part of their new employee orientation, or, if the training is provided in another manner within 90 calendar days of their appointment. [5 CFR 724.203](#) (e).

Notification of final agency action

- Agencies must provide notice of final agency actions, final EEOC decisions, and final court judgments involving a finding of discrimination (including retaliation). The notice must:
 - Within 90 days of the finding of discrimination.
 - Be posted on the agency's public internet website, in a clear and prominent location linked directly from the home page of the website.
 - State that a finding of discrimination was made.
 - The notice must remain posted for at least one year.[Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020](#), Sec. 1133.
- The notice of the discrimination finding must:
 - Identify the date the discrimination finding was made, the date on which each discriminatory act occurred, and the law violated by each discriminatory act.
 - Advise employees of their rights and protection under the antidiscrimination laws.[Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020](#), Sec. 1133.

Disciplinary action report

- Within 120 days of an agency's final action or the agency's receipt of an EEOC final decision involving a finding of discrimination, the agency must submit to the EEOC a report stating:
 - Whether disciplinary action has been proposed against an employee as a result of the violation.
 - The reasons for any proposed disciplinary action.[Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020](#), Sec. 1134.

Complaint tracking system

- By Jan. 1, 2022 (one year after enactment of the Cummings Antidiscrimination Act), agencies must establish a system to track each discrimination complaint made under [5 USC 2302](#) (B)(1) and adjudicated through the EEO process. [Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020](#), Sec. 1137.
- The system must track the complaint from filing with the agency to resolution, including whether a decision has been made regarding disciplinary action resulting from the discrimination finding. [Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020](#), Sec. 1137.

Notation in personnel record of action taken for discriminatory acts

- If an agency takes an adverse action under [5 USC 7512](#) against an employee for a discriminatory act, it must include a notation of the adverse action and the reason for the action in the employee's personnel record. [Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020](#), Sec. 1137.
- This notation is to be made after all appeals related to the action have been exhausted. [Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020](#), Sec. 1137.

Posting of EEO complaint data

- **Hadley:** The act, at Section 301, also requires that federal agencies, on an annual basis, post on their public websites a summary of statistical information relating to EEO complaints filed against them. [Hadley Guide to Federal Sector Equal Employment Law and Practice: No FEAR Act of 2002](#).
- The EEO complaint data to be tracked and posted on agency websites applies only to formal EEO complaints, not to EEO counseling. Settlements are also not tracked.
- The No FEAR Act posting requirement does not affect agency reported obligations to the EEOC on [EEOC Form 462](#), the Annual Federal EEO Statistical Report. Posted data is not consolidated governmentwide. (The EEOC consolidates and reports on data collected Form 462, which overlaps.) There is no enforcement mechanism if agencies fail to comply with posting requirements.
- No FEAR Act data must be available in PDF and in an accessible text format complying with Section 508 of the Rehabilitation Act. Agencies must post both aggregate agencywide data and data for each subordinate component. Subordinate components must link to their data on their own websites. [29 CFR 1614.703](#) (a)-(d).
- Data must be accessible through a link on the home page of the agency's public website reading "No FEAR Act data." This must lead to a page entitled: "Equal Employment Opportunity Data Posted Pursuant to Title III of the Notification and Federal Employee Antidiscrimination and Retaliation Act of 2002 (No FEAR Act), Pub. L. 107-174." [29 CFR 1614.703](#) (d).
- Quarterly data must be published cumulatively for each fiscal year, not separately. [29 CFR 1614.703](#) (e).
- All data from agencies with at least 100 employees must be posted in a uniform format, available on the EEOC [website](#). Smaller agencies may use their own formats, provided they supply the required data. [29 CFR 1614.703](#) (f).
- Data must be accessible through one or more commercial search engines. URLs must be provided to the EEOC for posting on its website [29 CFR 1614.703](#) (g)-(h).
- Each agency is required to post detailed data on EEO complaints by fiscal year, with comparative data from the preceding five fiscal years available. The data required are given in the regulation, and are also listed in the [uniform format](#) available from the EEOC. See examples from the OPM [website](#). [29 CFR 1614.704](#); [29 CFR 1614.705](#).
- The Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020, Sec. 1135, added the inclusion of data regarding each class action complaint filed against the agency alleging discrimination (including retaliation). The data must include:
 - The date on which each complaint was filed.
 - A general summary of the complaint's allegations.
 - If known, an estimate of the total number of plaintiffs joined in the complaint.
 - The current status of the complaint, including whether the class has been certified.
 - The case numbers for the civil action in which discrimination has been found.
- Although agencies may not alter the type of data to be provided, they may provide any supplementary data they wish on another web page [29 CFR 1614.706](#). This allows for analysis, additional statistics and anything else agencies feel they need to complete the No FEAR picture. [29 CFR 1614.706](#).
- Although the EEOC does not publish consolidated agency No FEAR data, it is required to publish detailed information on EEOC [hearings](#) and [appeals](#) on its [website](#). [29 CFR 1614.706](#).

Processing and referral of complaints

- The [Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020](#), Sec. 1137, adds a new Title IV to the No FEAR Act on the processing and referral of complaints.
- Each agency must establish a model EEO Program that:
 - Is not under the control, either structurally or practically, of the agency's Office of Human Capital or Office of the General Counsel (or the equivalent).
 - Is devoid of internal conflicts of interest.
 - Ensures fairness and inclusiveness within the agency.
 - Ensures the efficient and fair resolution of complaints alleging discrimination.
- [Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020](#), Sec. 1137.
- Within 30 days after receiving an agency's disciplinary action report required under Sec. 203(c), the EEOC may refer the matter to the Office of Special Counsel if the EEOC determines that the agency did not take appropriate action with respect to the finding in the report. [Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020](#), Sec. 1137.
- The EEOC must notify the agency if it refers a matter to OSC and include in the Annual Report of the Federal Workforce of the Commission for that fiscal year the number of referrals it made and a brief summary of each referral. [Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020](#), Sec. 1137.

- OSC must review each EEOC referral for purposes of pursuing disciplinary action against the employee who committed a discriminatory act. [Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020](#), Sec. 1137.
- OSC must notify the EEOC and the applicable agency if it pursues disciplinary action or if the agency imposes some disciplinary action against the employee. [Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020](#), Sec. 1137.
- Once a matter is referred to OSC, the agency may not take disciplinary action against the employee, except in accordance with the requirements of [5 USC 1214](#) (f). [Elijah E. Cummings Federal Employee Antidiscrimination Act of 2020](#), Sec. 1137.

Other Resources

- No FEAR Act, [Public Law 107-174](#)
- OPM [No FEAR Act Notice](#)
- EEOC [website](#), No FEAR Act EEO data
- EEOC No FEAR Act [Data Format](#)
- [Whistleblower Roundup](#)
- [Quick Start Guide: Whistleblower Protections -- Agency Action](#)
- [Checklist Plus+: The Formal EEO Process](#)
- [Checklist Plus+: Working with the No FEAR Act](#)
- [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 01 -- Overview, Subchapter 01 -- Authority and Jurisdiction, Section A -- Statutory Authority, Subsection 08 -- No FEAR Act of 2002.](#)
- [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 21 -- Forms of Reliance, Subchapter 06 -- Disciplinary and Corrective Action.](#)

Please share your experience and expertise. Forward any suggested additions or changes to this or other Quick Start Guides to QSGeditor@lrp.com.



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